

# OREGON STATE HOSPITAL

## POLICY

**SECTION 7:** Patient Rights **POLICY: 7.013**

**SUBJECT:** Law Library, Access to Legal Materials

**POINT PERSON:** Legal Affairs Director

**APPROVED:** Sara Walker, MD

**DATE:** JULY 25, 2024

  
Interim Superintendent

**SELECT ONE:** ☐ New policy ☒ Minor/technical revision of existing policy  
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

### I. PURPOSE AND APPLICABILITY

A. Oregon State Hospital (OSH) will provide patients with reasonable access to law materials and persons with legal training (*i.e.*, lawyers, paralegals, or law clerks) to provide legal assistance to patients. Reasonable access in this context means that:

1. patients will be given the opportunity to visit the law library for a minimum of four hours per month;
2. staff must schedule patients on a “first-come” basis, except that patients with court deadlines must be given priority use;
3. access to the law library may be limited by security considerations and staff availability; and
4. access to persons with legal training may be limited by the availability of the contracted law office personnel and the limits of OSH’s contract with that law office.

B. This policy applies to all staff.

### II. POLICY

A. OSH contracts with a law office to provide legal assistance to patients. The OSH Legal Affairs office coordinates the law office’s contract. The schedule and availability of the contracted law office must be posted in the law library, including the hours that the law office will have personnel on-site and the law office’s phone number.

1. The law office determines whether they will help patients, which patients must be assisted, and whether individual or group meetings, phone conversations, or printed materials provide the appropriate assistance.
  2. It is the law office's role to advise patients of the limits of its legal assistance. OSH does not review the legal assistance provided to patients, as attorney consultations are protected by the attorney-client privilege.
  3. The law office's persons with legal training may work in the library and may meet with patients in the law library consult room. They may also meet with patients at other locations at OSH, subject to applicable OSH visitor requirements.
- B. The OSH law library is available for patient use and it features a computer legal resources program and hard copies of pertinent legal materials. The law library is maintained by Legal Affairs.
1. With the exception of the computer legal resources program, internet access is not permitted in the law library.
  2. Law library materials (including, but not limited to books, computers, printers, and copy machine) must be protected from damage and inappropriate use.
- C. Each patient must be given the opportunity to visit the law library for a minimum of four hours per month. Patients may use the law library whether or not a person with legal training is present.
1. A patient may sign up to visit the law library on the unit's law library schedule. A patient may not visit the law library unless they have signed up to attend.
    - a. Staff must schedule patient visits on a "first-come" basis within the limitations imposed by security considerations and staff availability.
    - b. A patient with court deadlines must be given priority use.
  2. If a patient is denied law library access for any reason, the denial must be documented in the patient's medical record and on the unit sign-up schedule, with the reason indicated and signed by staff.
- D. A patient using the law library must be provided reasonably adequate workspace and other supplies as are generally required. These supplies and equipment may only be used for legal work.
1. Law library copy machines may only be used for case-related legal issues.
    - a. A patient may make incidental copies of material as needed (*i.e.*, no charge for first 20 pages per patient per visit).
    - b. When copying more than 20 pages, the patient will be charged \$.10 per page for each additional page.

2. OSH must provide postage via the postage meter in Reception for all indigent patient legal mail in accordance with OSH Policy 7.001, "Mail for Patients". Legal mail must be sent certified when required by statute or the courts.
- E. Patients are responsible for their own legal documents.
- F. Staff must accompany patients to the law library, verify they use the law library appropriately, and supervise them throughout the session without intruding on consultation between the patient and persons present with legal training.
1. To the extent they are able, supervising staff must provide assistance to a patient in accessing the computer legal resources program when persons with legal training are not available.
  2. Staff may not review the patient's written material unless the patient has requested the review.
  3. Staff may not enter the consult room used while the patient and persons with legal training are consulting unless requested to do so, but they must remain nearby to provide support as needed.
  4. Staff supervising patients in the law library are responsible to prevent patients from taking law library books, damaging property, and attempting to fix law library equipment.
- G. A patient may contact the OSH-contracted law office by calling the number for the law office posted in the law library.
- H. Any patient who believes that he/she has been denied access to the law library or persons with legal training or feels he/she has been denied the provisions of this policy may file a grievance in accordance with OSH Policy 7.006, "Patient Grievances".
- I. Each patient must be given information regarding this policy. This information may be provided separately to each patient or may be posted on units.
- J. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- K. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

### **III. DEFINITIONS**

- A. “Computer legal resources program” means an extensive up-to-date web-based searchable legal database purchased by OSH for use by patients. It includes Federal Law (U.S. Supreme Court Reports and Opinions, Federal Circuit Courts and District Court Opinions, U.S. Tax Court information, Administrative Decisions Under Immigration and Nationality Laws of the U.S, Federal Rules, U.S. Constitution, U.S. Code, Public Laws of the United States, Code of Federal Regulations, Federal Register, and U.S. Sentencing Commission Guidelines Manual) and State Law for all 50 States and Washington D.C. including: Case Law, Statutes and Acts, Administrative rules and regulations, Court rules, and Hyperlinks to all cited state and federal cases, statutes and other primary law.
- B. “Legal assistance” means (1) legal research; (2) training regarding how to conduct legal research; (3) clarification of legal issues and legal procedures; (4) drafting of complaints or other pleadings; or (5) filling out legal forms. The contracted law office may provide additional legal services to OSH patients at the law office’s discretion, but OSH will not pay for any additional services beyond this definition of “legal assistance”.
- C. “Staff” includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

### **IV. RELATED OSH POLICIES AND PROTOCOLS**

7.001 Patient Mail

7.006 Patient grievances

7.005 Patient rights

### **V. REFERENCES**

Oregon Administrative Rules §§ 309-102-0100 — 309-106-0020.

Oregon Revised Statute § 179.385.

Oregon Revised Statute § 426.385.